



Australian Government

Comcare

Claim Number: 1326583/1

Dr Richard William McLean
2 McCubbin Street
FOOTSCRAY 3011

26 May 2021

Dear Dr McLean

Your claim for workers' compensation

Claimed condition: anxiety and depression
Date of injury: 22 January 2021

Determination

I am writing to advise that your claim for Workers' Compensation has been declined under section 14 of the *Safety, Rehabilitation and Compensation Act 1988* (SRC Act) for anxiety state and depressive disorder.

Reasons for decision

When assessing a claim, Comcare needs to be satisfied that several criteria are met. The first criteria being confirmation that the person is an 'employee' in accordance with section 5 of the SRC Act.

Subsection 5(1) of the SRC Act defines an employee to mean:

- a) A person who is **employed by the Commonwealth or a Commonwealth authority**, whether the person is **employed under a law of the Commonwealth** or of a Territory or **under a contract of service** or apprenticeship; or
- b) A person who is employed by a licensed corporation.

Are you employed by the Commonwealth?

In your workers' compensation claim form dated 26 April 2021 you state your usual occupation is 'artist-life coach- therapeutic supplier' and that you are a 'sole trader.'

You have clarified in an email dated 13 May 2021, that you are a registered provider for the National Disability Insurance Agency (NDIA) and recorded your registered National Disability

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Insurance Scheme (NDIS) provider ID number. You have said you are an 'employer of yourself' and are paid by NDIA through Provider Digital Access (PRODA).

Generally, when a person is employed under a contract of service the following indicators are met:

- The employer has the power to hire the person engaged for the job.
- The payment is in the form of wages and the employer deducts tax and pays superannuation.
- The employer has the right to supervise and control the manner in which the employee does their work.
- The person engaged is subject to the employer's disciplinary standard; i.e. APS Code of Conduct and other internal department policies which provide guidance and standards of behaviour.

The NDIA advised in their statement dated 10 May 2021 that you are not an employee of NDIA. The NDIA confirmed that you are not paid in the form of wages in which the NDIA deduct tax and pay superannuation. NDIA also note that they are not responsible for your supervision or control the manner in which you complete your work and you are not subject to the APS Code of Conduct or internal NDIA policies which provide guidance and standards of behaviour.

In your response dated 14 May 2021, you state you contract to the NDIA, the NDIA have approved you and can fire you, you are being paid by the NDIA and not a separate company. You also claim that you have to complete an audit by the NDIS Quality and Safeguards Commission (NDIS Commission) and if you do not meet the requirements you will be excluded from your job; and are required to comply with reportable instances within a definite timeframe.

To support your position that you are an employee, you have provided a copy of the Recovery of Advance Payment for Registered NDIA Providers dated 13 May 2021. On review of the NDIS website, the NDIA introduced a one-off advance payment for registered providers to assist in the expected increase in cost to deliver support with the expectation this will be repaid by providers in the future.

Comcare acknowledge that you are a registered NDIA provider who delivers support to participants of the NDIS, are required to meet NDIS Commission practice standards, and receive payment from NDIA for services you provide to NDIS participants.

Based on review of the above evidence, Comcare concludes that this supports you are an independent sole trader under a contract **for** service to NDIA rather than contract **of** service. Comcare have requested you provide a copy of your contract, however, to date this has not been received.

Based on the available evidence, Comcare is not satisfied you are an 'employee' in accordance with the SRC Act and as such are precluded from claiming compensation through Comcare.

What do I do if I disagree with this decision?

If you disagree with this determination you have the right for it to be reviewed. Please refer to the attached *Notice of Rights* or see 'Assistance and Further Information Options' at the end of this letter.

If you have any queries please call me on 02~6276~0354 or contact Comcare as below.

Yours sincerely



Amy Delzoppo
Comcare delegate
Tel: 02~6276~0354

CC: Case Manager

Attachments: Notice of Rights

ASSISTANCE AND FURTHER INFORMATION OPTIONS

Phone (from landlines only) 1300 366 979, for the cost of a local call or additional information and forms are available from our website at www.comcare.gov.au

- If you disagree with a determination made by Comcare you may request a reconsideration within 30 days of receiving it
- General information about Comcare's claims and benefits are available from our website
- Claims are assessed under the Safety, Rehabilitation and Compensation Act 1988 (SRC Act)
- The clinical framework for the delivery of health services provides guidance for treatment providers helping employees recover and return to work following a workplace injury or disease

Privacy is important to us. More information on how Comcare handles personal information is available from our website or call 1300 366 979.